

DRISTI CASE FILE - FICTIONAL DOCUMENT PACK

IN THE COURT OF THE JUDICIAL FIRST CLASS MAGISTRATE-I, KOLLAM

C.C. / S.T. No. ST/412/2025 (arising out of CMP/1842/2025)
Complaint under section 138 of the Negotiable Instruments Act, 1881

APPLICATION FOR PRODUCTION OF DOCUMENTS

Account records to be spoken to by PW-2

Sunil Varghese,
aged 42, 14 Example Lane, Asramam, Kollam 691002
... **Complainant**

Versus

Anand Traders, a sole proprietorship,
represented by its proprietor Arun Das, aged 39,
25 Sample Market Road, Chinnakada, Kollam 691001
... **Accused**

Case title	Sunil Varghese v. Anand Traders
Case numbers	CMP/1842/2025 ST/412/2025
Filing number	KL-DUMMY-001386-2025
Court	Judicial First Class Magistrate Court-I, Kollam
Filed by	Adv. Ramesh Menon, counsel for the complainant
Records sought	Kerala Mercantile Bank (Fictional), Kollam Market Branch
Status	Draft - court fee not yet paid

The complainant respectfully submits as follows:

- PW-2, Priya Nair, is an authorised official of Kerala Mercantile Bank (Fictional), Kollam Market Branch, cited to prove the dishonour of cheque number 000184 dated 15 April 2025.
- The return memo dated 17 April 2025 records the reason for return as "Funds Insufficient". The underlying account records for the months of April and May 2025 are in the exclusive custody of the bank and are not available to the complainant.
- Those records are necessary to enable PW-2 to speak to the state of the account on the date of presentation and to prove the return memo produced with the complaint.
- No prejudice will be caused to the accused, who is at liberty to cross-examine PW-2 on the records so produced.
- This application is filed bona fide and in the interest of a just decision of the case.

Prayer

It is therefore most respectfully prayed that this court may be pleased to direct Kerala Mercantile Bank (Fictional), Kollam Market Branch, to produce the account records for April and May 2025 relating to the account on which cheque number 000184 was drawn, and pass such further orders as this court may deem fit and proper.

Place: Kollam Date: 22 September 2025

Adv. Ramesh Menon

Counsel for the complainant

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FICTIONAL DUMMY DOCUMENT